

24NWCV03467 24NWCV03467

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 24NWCV03467 Hearing Date: August 14, 2026 Dept: P

Silva v. Boik, et al.,

24NWCV03467

This premises liability action was filed on October 2, 2024. Trial is scheduled to begin on September 14, 2026. Plaintiff Maria Silva (Plaintiff), jointly with Defendants Retail Portfolio San Jose, LLC, Kendallwood, LLC, and Jessica Martin (Defendants) have a Motion to Continue Trial scheduled to be heard three days before the trial date, on September 11, 2026. Plaintiff now applies ex parte to shorten time to hear the Motion to Continue Trial. Plaintiff argues good cause exists because Plaintiff is scheduled to undergo an ankle surgery in August of 2026 which entails a Plaintiff argues that the parties seek a trial continuance pursuant to a Joint Stipulation signed by all the parties.

Plaintiff's ex parte application to advance the Motion to Continue Trial is GRANTED.

The Court ADVANCES to Motion to Continue Trial to today's date and GRANTS the Motion to Continue Trial pursuant to California Rules of Court, rule 3.1332(c)(2) – "[t]he unavailability of a party because of...excusable circumstances" and pursuant to the Joint Stipulation. A trial continuance to March 17, 2027 or thereafter is reasonable. The Court will confer with the parties to select new trial and FSC dates. The discovery cut-off date and related deadlines will correspond with the new trial date.

Moving party to give notice.